IN THE DISTRICT COURT HELD AT GBESE, ACCRA, BEFORE HER WORSHIP ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI, SITTING AS A MAGISTRATE ON 18TH DAY OF JULY, 2025.

SUIT NO: A9/17/2020

SAMUEL-WISE ANNOI QUARCOO ::: PLAINTIFF

VRS.

BENJAMIN AHELE QUARCOO ::: DEFENDANT

Time: 11:04 am

Plaintiff: present.

Defendant: absent.

Reginald Niibi Ayi Bonte Esq., for Plaintiff.

Jonathan Antwi Esq., for Defendant.

JUDGMENT

By a writ of summons issued on 21st August 2019, the jurisdiction of this Court was invoked by the Plaintiff for the following reliefs against the defendant:

a. Eviction of the defendant, his assigns, officers' agents and heirs from house number B 112/18 Bubiashie Accra.
b. Costs including legal fees
c. Any other order(s) as this Court deem fit.

The defendant filed his statement of defence without a counterclaim on 3rd September 2019.

THE CASE OF THE PLAINTIFF

The Plaintiff says the defendant was offered two bedrooms for his occupation in house number B 112/18 Bubiashie Accra, where Plaintiff lives following the plea of Plaintiff's Aunt Comfort Naah Afi Quarcoo. The Plaintiff states pursuant to the demise of his father Peter Patrick Quarcoo house number B 112/18 was vested in his name and that of the sister Lydia Anowah Quarcoo. The Plaintiff states that letters of Administration was obtained in respect of house number B 112/18 Bubiashie Accra by Benjamin Addofio Quarcoo the senior brother of the deceased and the head of family. The Plaintiff's case is that after providing shelter for the defendant who occupies two rooms in the said house, defendant has become a thorn in his flesh. The Plaintiff states that the defendant and the wife are fond of raining insults on him without just cause and provocation so much so that he is a laughing stock before his wife, family and tenants as a result of the condemnations visited upon him by the defendant and his wife all the time. That under the circumstance defendant and his wife's conduct towards the Plaintiff can no longer be entertained as the verbal assault cannot be contained any longer. The Plaintiff therefore says he cannot share the same premises with the defendant. That all efforts to evict defendant have failed unless the court intervenes. The Plaintiff says the rooms are required for renovation.

Plaintiff replied to the defendant's statement of defence as follows:

Plaintiff says he knows Madam Annowah Quarcoo but not Anthony Annoi Quarcoo and defendant is to prove whether he is a descendant of Peter Patrick Quarcoo deceased. Plaintiff denies paragraph 8 of the statement of defence save that someone lived with the said Benjamin Addofio Quarcoo who was the head of Plaintiff's family. The said individual lived with Benjamin Addofio Quarcoo and stole a huge sum of money from him and absconded. Plaintiff says it is the said Benjamin Addofio Quarcoo who procured the letters of Administration in respect of the estate of Peter Patrick Quarcoo and vested same in Plaintiff and his sister. Plaintiff says indeed Comfort Naah Afi Ouarcoo brought defendant to him pleading for a place to sleep as defendant lacked accommodation. Plaintiff therefore says defendant is best known to

the said Comfort Naah Afi Ouarcoo. The defendant elected not to use the toilet facility again due to his insolent behaviour towards Plaintiff. The Plaintiff responds further that the defendant consistently refused to contribute towards maintenance of the facility. The Plaintiff objects to exhibit "A" filed by defendant as same is not relevant to the case, therefore Plaintiff shall subject defendant to strict proof. Plaintiff says indeed the defendant is a nuisance and that living with him on the same premises could cause loss of lives if the Court does not intervene. Plaintiff therefore repeats all the averments in his statement of claim in response to the statement of defence and prays the Court to dismiss the defence filed with costs.

EVIDENCE IN CHIEF OF PLAINTIFF

Plaintiff, in addition to repeating his averments from his statement of claim attached the letters of administration and vesting assent which vested the property in him and his sister. Plaintiff says the said Comfort Naa Afi Quarcoo is deceased and attached a copy of her funeral brochure. According to the Plaintiff, the defendant is best known to Comfort Naa Afi Quarcoo but not to him. In 2002 the defendant summoned Plaintiff to the Commission of Human Rights and Justice for which his claim was dismissed outright. Plaintiff attached a copy of the invitation letter. Plaintiff says the defendant is not entitled to the estate of Peter Patrick Quarcoo as he has no interest in same and is a stranger to the estate. Plaintiff denies there ever being any arbitration in respect of house number B. 112/18 Bubiashie Accra. Plaintiff added that the defendant on one occasion cursed him with the smaller gods breaking two eggs in his presence and has since been traumatized. Defendant's conduct amounts to nuisance to the extent that he can no longer contain same fears for his life as the defendant always threatens him. A complaint has since been lodged at the Kaneshie Police Station Accra. This was followed by defendant’s arrest and detention at the said police station. Considering that the rooms are needed for renovation and personal use, Plaintiff prays this Honourable Court evicts the defendant from house number B. 112/18 Bubiashie Accra.

THE CASE OF THE DEFENDANT

Defendant says that the said property belongs to his late grandfather Peter Patrick Quarcoo. Defendant says that his late grandfather had three children namely Samuel Wise Annoi Quarcoo, Madam Annowah Quarcoo and Anthony Annoi Quarcoo being the defendant's father. Defendant says that his late father is the second son of the late Peter Patrick Quarcoo. Defendant says that after the demise of his late grandfather the said property was shared among the siblings. Defendant says that his late father was a beneficiary to the said property as Custom demands. Defendant says that he was by then in School when he lost his father who is the second child of his late grandfather. Defendant says that after the demise of his late father Anthony Annoi Quarcoo who is the second child of his late grandfather, he lived with Benjamin Addofio Quarcoo who was then the head of family. Defendant says that during his stay with Benjamin Addofio Quarcoo being the head of family he called Comfort Naah Afi Quarcoo and indicated to her that since defendant has lost his father he has equal right to the said property. Following this, Comfort Naah Afi Quarcoo took the defendant to the said house where Plaintiff is staying for arbitration. Defendant says that at the arbitration, the entire family gave him three rooms out of the 16 rooms. Defendant says that after the settlement, he had 3 rooms and Comfort Annowah Ouarcoo gave him one more room making 4 rooms. Defendant prays to this Honourable Court to restrain Plaintiff from harassing him for him to get access to enable him enjoy the said 4 rooms given to him and also open the toilet facility.

EVIDENCE IN CHIEF OF DEFENDANT

Defendant states that he is an employee of Nest Flight Hotel at Tema and the surviving child of the late Anthony Annoi Quarcoo a.k.a Annoi Effeduase who is the elder brother of Plaintiff. Plaintiff is therefore his uncle. The House No.Bl12/18 Bubiashie, Accra was the self-acquired property of his late grandfather Peter Patrick Quarcoo. Defendant’s late grandfather was survived by his children Madam Lydia Annowaa Quarcoo, Anthony Annoi Quarcoo and Samuel Wise Annoi Quarcoo, all of different mothers. Anthony Annoi Quarcoo shortly after their father's death left for Nigeria

where he died after a short stay. In Anthony Annoi Quarcoo's absence, Madam Annowaa Quarcoo and Plaintiff took it upon themselves to administer the Estate of their later father including house number BI12/18 at Bubuashie. From there on Plaintiff assumed ownership of the house claiming that the entire Estate has been vested in him and Madam Annowaa Quarcoo to the exclusion of Anthony Annoi Quarcoo. Anthony Annoi Quarcoo was therefore left out in the sharing of the Estate. When the sharing was done, defendant was with his grandmother at Ashanti Effeduase schooling and returned to Accra to stay with Benjamin Addofio Quarcoo the then Head of Quarcoo Family and his grandfather. While there he realized his father had been disinherited of his father's Estate by Plaintiff. He therefore took up the matter of his father's share of the Estate with Plaintiff who was unwilling to release his father's share to defendant being the only surviving child of his father. Defendant eventually involved the Head of family, Benjamin Addofio Quarcoo (deceased) and with the help of Lydia Annowaa Quarcoo a family meeting was held at which the Estate of Peter Patrick Quarcoo was shared to his children. At the said meeting, defendant was given 3 rooms as his father's share out of the total 15 rooms in the house. A document was executed by all the beneficiaries and elders present to seal the sharing of the Estate. Plaintiff duly signed the document to signify his acceptance of what the elders had done. This was supported by Exhibit BAQ"1". Lydia Annowaa Quarcoo felt the sharing was distorted against his father and voluntarily gave out one of her rooms to add to defendant's to make 4 rooms. Thus, defendant has four (4) rooms in House No. B112/18 at Bubuashie. Defendant states he is in the house due to his inheritance from his father's share of Peter Patrick Quarcoo and also being a member of the Quarcoo family. Plaintiff without any just cause is laying claim to all the 4 rooms which have come to me him virtue of being the child of Anthony Annoi Quarcoo. Plaintiff's claim not to know defendant is very strange to him as he knows Plaintiff to be his uncle. Plaintiff is defendant's younger brother. Plaintiff has annexed two of the rooms given to defendant and rented them out without his consent. Plaintiff broke into one of the rooms, packed everything in there before giving it out for rent.

Defendant does not know where Plaintiff has sent his items to. In March 2019, Plaintiff mobilized four men to eject him from his room. It took the intervention of the Police Patrol team to restore order and to have his room back. Whenever defendant complains about the conduct of Plaintiff, Plaintiff accuses him of being disrespectful and hostile and has prevented him and his family from using the washroom in the house. This has caused defendant to use the public toilet and an obscure corner behind the main house as a bathing place. Plaintiff has deliberately constructed a wall to deny defendant and his family access to the bath room and toilet. Defendant denies ever physically or verbally assaulting Plaintiff at any time. It is rather Plaintiff who is harassing and intimidating defendant and his family so as to throw him out of the house for Plaintiff to take over everything.

ISSUES

1. Whether or not the Plaintiff's father had another son who is the father of the defendant.
2. Whether or not the defendant is entitled to a share of the estate of Peter Patrick Quarcoo.
3. Whether or not there was a redistribution of the property.
4. Whether or not Plaintiff is entitled to eject the defendant.

THE LAW

The Burden and Persuasion of Proof

Evidence Act 1975 (N.R.C.D. 323)

In examining the case put forward by the parties, the court must be circumspect and deal with facts as well as the evidence adduced and most importantly the law. The law that this court will be instructed by are as follows:

Section 10

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(b) to establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

Section 11

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads a reasonable mind to conclude that the existence of the fact was more probable than its non-existence.

Section 12

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

Section 17

Except as otherwise provided by law,

(a) the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof;

(b) the burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact.

Issues of administration and the right to distribute property came up under cross examination. The applicable law is stated as follows:

Section 1 (1) of the Administration of Estates Act, 1961 (Act 63):

"The movable and immovable property of a deceased person shall devolve on the personal representatives of the deceased person with effect from the date of death"

Section 96 (1) of the Administration of Estates Act, 1961 (Act 63) provides that:

"A personal representative may assent to the vesting ... in a person who, whether by devised, bequest, devolution, appropriate ion or otherwise, it entitled to the vesting beneficially or as trustee or personal representative, of any estate or interest in immovable property.

a. To which the testator or intestate was entitled, or

b. Over which the testator exercised a general power of appointment by will, and which devolved on the personal representative."

In the case of Mojolagbe v. Larbi and Others (1959) GLR 190, the court held as follows:

"Proof, in law, is the establishment of fact by proper legal means; in other words, the establishment of an averment by admissible evidence. Where a party makes an averment, and his averment is denied, he is unlikely to be held by the Court to have sufficiently proved that averment by his merely going into the witness-box, and repeating the averment on oath, if he does not adduce that corroborative evidence which (if his averment be true) is certain to exist. … "Proof in law is the establishment of facts by proper legal means. Where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, he does not prove it by merely going into the witness-box and repeating that averment on oath, or having

it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true." …Therefore, the role of a trial judge "in a civil matter is to determine from the evidence available which of the parties adduced credible and sufficient evidence to tilt in his favour the balance of probabilities on an issue." (my emphasis)

In applying the above statute and case, in Ackah v. Pergah Transport Ltd (2010) SCGLR 728 @ 736 the Supreme Court held:

"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."

ANALYSIS

Issues 1, 2 and 3

Issues 1, 2 and 3 shall be determined together. Ordinarily, this being the Plaintiff's case to prove, certain preliminary issues raised as a result of defendant's case has necessitated the issue of the parties' relationship to be determined. This will enable the court effectively determine the rights of the parties if any. The Plaintiff herein

states in summary that defendant is a thorn in his flesh, a nuisance and would very much like for the defendant to be evicted. Defendant on the other hand claims that by virtue of being the son of Plaintiff's brother's son, he is entitled to a share in the inheritance of Peter Patrick Quarcoo' s who is Plaintiff's father and this includes the house in dispute. Defendant attached a document to that effect. There is no controversy as to Plaintiff's status when it comes to the house in question. Plaintiff in support of his case attached the Letters of Administration and Vesting Assent that vested the properties of Peter Patrick Quarcoo in the Plaintiff and his sister. These were not disputed by the defendant. The issue is whether defendant is also entitled to the said house. Note must be taken that the defendant did not file a counterclaim. Plaintiff has denied defendant's assertion of being the defendant's uncle and has even denied having an elder brother at all. The law is that the evidential burden is on the one making a positive assertion and for anyone who makes a positive assertion that is denied, same must be proved by some other cogent evidence (see sections 10, 11 and 17 of NRCD 323 supra and Mojolagbe v. Larbi and Others (1959) GLR 190 and Ackah v Pergah Transport Ltd (2010) SCGLR 728 @ 736). The onus is thus on defendant to prove the assertion he has made. Defendant in furtherance of this objective attached a document which appears to be a settlement of sorts and marked as Exhibit BAQ 1. The Plaintiff was cross examined about his relationship or lack thereof with the defendant as follows:

Q. How did you come by that house?

A. The house belongs to my late father. It was given to us, my sister and I by my father's elder brother who was the Head of family (HOF).

Q. So you came by that house through inheritance.

A. Yes my Lord.

Q. Your father was survived by three children.

A. No, we are only two (2).

Q. Do you know Madam Lydia Annoa Quarcoo?

A. I do know her very well.

Q. Do you know Anthony Annoi Quarcoo Oha Annoi Afiguase?

A. No, I do not.

Q. I am suggesting to you that Anthony Annoi Quarcoo is your own brother by your own father.

A. It is not correct, I do not know any one.

Q: For how long were you in the hospital?

A: Two (2) months.

Q: Yet he was made to collect rent for 1 full year?

A: Yes.

Q: And this was the person you want the Court to believe that he is a stranger to you?

A: I am not telling the Court that he is a stranger to me, I am telling the Court if he is from the Quarcoo family he is not a nuclear member that is he is not my brother's son because I do not have any brother like that.

Q: You have maintained all along that the Defendant is not a member of the Quarcoo family?

A: I have never maintained that he is not a member of my family but that he is not a member of my nuclear family?

Having denied knowledge of an elder brother, the defendant thus had to prove that the Plaintiff had an older brother who is he (defendant's) father. Exhibit BAQ1 describes the defendant as a beneficiary of the estate of the late Peter Patrick Quarcoo. The Plaintiff denies signing the agreement altogether. This was interrogated under cross examination on different occasions as follows:

Q. Have you personally, Elders of your family and Defendant ever sat down to share the estate of your late father?

A. That has never been done.

Q. Exhibit '1' refers what you are holding. Headings read also in Court by Plaintiff.

Q. Who is Benjamin Ahele Quarcoo?

A. It is the Defendant.

Q: The two (2) rooms you released to Defendant were part of the four (4) rooms allocated to him by the family at the settlement.

A: Nobody has allocated any four (4) rooms to him at any settlement.

Yet again the defendant has the burden of proving that the Plaintiff signed the said document. To the extent that the Plaintiff denies signing the said document, the onus was on the defendant to prove that he did. Under cross examination of the defendant on his relationship with the Plaintiff and Exhibit BAQ 1 the following ensued:

Q: Give your full name to the Court?

A: Benjamin Ahele Quarcoo.

Q: How are you related to the Plaintiff?

A: He is my Uncle.

Q: How did he become your Uncle?

A: He is my father's brother.

Q: Are they from the same mother?

A: No.

Q: Where is your mother?

A: She is deceased.

Q: Where is your father?

A: He is also deceased.

Q: And what is your father's name?

A: Anthony Annoi Quarcoo a.k.a Annoi Effiduase.

Q: Are you aware that the father of the said Annoi Quarcoo died without a Will?

A: I am not aware.

Q: I am suggesting to you that the father of the said Anthony Annoi Quarcoo died without a Will?

A: I am not aware.

Q: Do you know the Chief Scout Commissioner known as Benjamin Addofio Quarcoo?

A: Yes.

Q: Take a look at exhibit 'A' who was the Letters of Administration granted to? (L/A read out)

A: I have no idea about it.

Q: Your basis of claiming ownership of 4 of the rooms in that property is based on that letter authored by James Quarcoo dated 3rd April, 2009, is that correct?

A: That is so.

Q: I am putting it to you that the only person who can distribute rooms in the said property to the beneficiaries is Benjamin Addofio Quarcoo, the administrator?

A: I do not know that.

Q: This letter, your exhibit 'BAQ' who was it addressed to?

A: It was addressed to the 3 of us, Madam Lydia Anowah Quarcoo, Samuel-Wise Annoi Quarcoo and Benjamin Ahele Quarcoo.

Q: *I am suggesting to you that you cannot write a letter to a Judge without a suit number and the parties, is that correct?*

A: *I do not know.*

Q: *I am suggesting further to you that this exhibit 'BAQ' is a self-serving document and has no legal effect?*

A: *It has legal weight.*

Q: *Are you aware that Benjamin Addofio Quarcoo died on 20th November, 2007?*

A: *I am aware he is dead but I do not know the date.*

Q: *Take a look at this picture, is that the Benjamin Addofio Quarcoo you know?*

A: *(Picture shown to Court, Counsel for Defendant and witness) Yes.*

Q: *The 4 rooms you are laying claim to is situated at H/No B112/18, Bubuashie – Accra, is that correct?*

A: *That is so.*

Q: *I am suggesting to you that the administrator transferred the property into the name of the Plaintiff and his sister Lydia Anowah Quarcoo, is that correct?*

A: *I do not know.*

Q: *Take a look at exhibit 'B' of the Plaintiff's Witness Statement, (read out) I am putting it to you as at today the property is in the name of the Plaintiff and his sister Lydia Anowah Quarcoo?*

A: *I do not know anything about that.*

Q: *But you have seen the document today in Court, is that correct?*

A: *Yes.*

Q: Between your exhibit 'BAQ 1' and the exhibit 'B' the entire property and the 4 that you are occupying belongs to the Plaintiff and not you?

A: I disagree because the Plaintiff and Mr. James Quarcoo drafted exhibit "BAQ 1' together so if he knew exhibit 'B' existed then exhibit 'BAQ1' should not have been drafted.

Q: I am putting it to you that those who drafted exhibit 'BAQ' have acted contrary to the law?

A: The Plaintiff was part of the drafters.

Q: I am putting it to you that you are not entitled to any portion of the estate of Mr. Peter Patrick Quarcoo at all?

A: That is not correct because I am also a family member.

Q: When did your father die?

A: 1976.

Q: Do you have other siblings from your father?

A: Yes but she is also dead.

Q: When did she die?

A: I do not know.

Q: Is there any obituary notice of that sister?

A: No, she was very young when she died.

Both parties had witnesses unfortunately, Plaintiff's witness died before he could be called upon to testify. As such not much weight shall be attached to his evidence. The defendant's witness was cross examined. He testified to the fact that defendant is the nephew of the Plaintiff and that he was at the said meeting of the elders when the property was shared between Plaintiff, his sister and the defendant and was there

when defendant was given his share of the rooms. The following ensued under cross examination:

. Q: *Can you give your full name to the Court?*

A: *Timothy Nii Adjei Kwei.*

Q: *How old are you?*

A: *48 years.*

Q: *What is your highest level of education?*

A: *JHS.*

Q: *And which year did you complete your JHS?*

A: *1995.*

Q: *Now tell this Court, do you belong to the Quarcoo family?*

A: *No.*

Q: *In your paragraph 2 you have averred that you know both the Plaintiff and the Defendant and that the Plaintiff is the uncle of the Defendant, can you explain how the Defendant is the nephew of the Plaintiff?*

A: *It was my aunty who told me that the Defendant is the nephew of the Plaintiff.*

Q: *But you don't know that as a fact?*

A: *Since I was told I also believe that that is his uncle.*

Q: *What is the name of Defendant's father?*

A: *My aunty told me that the Defendant's Annoi Effiduasi.*

Q: *I presume you can read and write, is that correct?*

A: *Yes but not fluent.*

Q: Take a look at your Witness Statement which was filed on the 25th March, 2020, can you read to the hearing of the Court, paragraph 3?

A: I do not have my spectacles here to read. (Read out to witness).

Q: These grandchildren you mentioned in paragraph 3, who are they?

A: I only know of the Defendant.

Q: Is the Defendant the only grandchild you know of Mr. Patrick Quarcoo?

A: That is so.

DW1 admitted to not being a member of the family. Considering that DW1 claims to have been told of defendant's lineage by his Aunty, which Aunty he did not name, it can be concluded safely that said Aunt is also not a member of the family. Thus, very little weight can be attached to this testimony as proof that the defendant is the grandson of Peter Patrick Quarcoo. The case of Mojolagbe v. Larbi and Others supra is instructive in that evidence capable of proof by some documentary evidence or some other means is necessary especially when same has been denied by the other party. It is not enough for the party and his witness to repeat the averments made in the witness box. On this therefore, I do not think the defendant has been able to establish that he is the grandson of Peter Patrick Quarcoo.

On the issue of all the documents exhibited the following ensued under cross examination of DW1:

Q: At that meeting what was your role?

A: I was not given any role.

Q: Who invited you to that meeting?

A: My Aunty Lydia Anowah Quarcoo invited me.

Q: Are you that the said meeting took place on 25th March, 2009?

A: *It's been long so I cannot remember the exact date.*

Q: *In 2009, how old were you?*

A: *32 years.*

Q: *I am suggesting to you that if you attended that meeting then you were a meddlesome interloper?*

A: *I don't understand what that means.*

Q: *Who chaired that meeting?*

A: *It was one Alhaji.*

Q: *The alleged meeting which took place on 25th March, 2009, minutes were recorded and attendance also?*

A: *I don't know much about what happened at the meeting because I wasn't part of the family members.*

Q: *Of the names recorded as the attendees, your name was not captured, I am putting it to you?*

A: *It is a family matter.*

Q: *You were present at an alleged meeting at Abola, do you still stand by that?*

A: *I was at the meeting.*

Q: *Those who attended the meeting were Haruna Annoi Quarcoo, Ahele Chorkor Quarcoo, James Tetteh Quarcoo, Robert Addo Quarcoo, Benjamin Addo Quarcoo, of the list that I mentioned the administrator of the estate of Peter Patrick Quarcoo was not present, is that correct?*

A: *I don't know the names that you have mentioned.*

Q: Apart from B.A Quarcoo the Scout Commissioner none of the names I have mentioned earlier has the right to redistribute the estate of the late Peter Patrick Quarcoo, I am suggesting to you?

A: I don't know but what I know is that my Aunty took me to the meeting and at the meeting they discussed about certain things and signed some documents after that they went home to distribute the property.

Q: You also averred that you were at Bubuashie where the said redistribution was done, is that correct?

A: Yes.

Q: At Bubuashie, B.A Quarcoo was not present, was he?

A: I don't know the person by name B.A Quarcoo.

Q: You know the house at Bubuashie, don't you?

A: Yes.

Q: How many rooms does that house contain?

A: I don't know the number of rooms in the house.

Q: But you saw the distribution of the rooms is that correct?

A: Yes.

Q: How many rooms were given to the Plaintiff?

A: I don't know the number of rooms that were given to the Plaintiff.

Q: How many rooms were given to the only sister of the Plaintiff?

A: 5 rooms.

Q: How many rooms were given to the alleged father of the Defendant?

A: I don't know.

Q: How many rooms were given to the Plaintiff that you know of?

A: I can't remember.

Q: I am suggesting to you that whoever shared the rooms at Bubuashie has committed an offence under the laws of Ghana?

A: I disagree.

Q: You have shown before this Court that you read and write after all?

A: That is so.

Q: I am putting it to you that under the rules of this Court (C.I 59) that apart from B.A Quarcoo nobody has the right to share the property of Peter Patrick Quarcoo?

A: I don't know.

Q: Records before this Court shows that B.A Quarcoo has already distributed the property of Peter Patrick Quarcoo to his children?

A: I don't know.

Q: I am going to read something to you, (exhibit 'B' read out). Do you understand what I read?

A: No.

Q: The document I read is that Benjamin Addofio Quarcoo was given the power by the Court to gather and distribute all the properties of Peter Patrick Quarcoo to all the beneficiaries and the person he gave the properties to the Plaintiff and Lydia Annowa Quarcoo, do you agree?

A: I disagree.

Q: Benjamin Addofio Quarcoo died in the 2007, I put it to you?

A: I don't know.

Q: The meeting which you attended as a non-family member at Abola, do you remember when it was held?

A: I don't remember.

Q: That meeting allegedly took place in 25th March, 2009, 2 years after the death of Benjamin Addofio Quarcoo in the year 2007?

A: I don't know.

Q: Finally I am putting it to you that once the vesting assent has been prepared nobody has the power to redistribute the estate?

A: I don't know that they have done any vesting assent.

Q: I am finally putting it to you that you are a severely perjured witness?

A: I believe that all that I have said in this Court is true.

Q: We are not in engaged in religious enterprise, I am putting it to you?

A: All that I have said is true.

Q: The vesting assent exhibit 'B' which I read to you does not contain the alleged father of the Defendant?

A: I don't know.

Q: Did the alleged father of the Defendant attend the Bubuashie meeting?

A: No because my Aunty already told me that he had passed on long time ago.

Q: Do you know the alleged father of the Defendant personally?

A: No.

DW1 admits not having taken part in the settlement agreement itself per paragraph 7 of his witness statement but claims to have been present on the day of distribution. From the cross examination of DW1 though DW1 claims to have been present at the

said distribution of the property, he curiously only remembers the portion given to the Plaintiff's sister.

All the parties agree that Benjamin Addofio Quarcoo was the head of family until his demise. It is also the defendant's case that the said Benjamin Addofio Quarcoo was the facilitator of the redistribution. Now, looking at BAQ1, there is a name Benjamin Addo Quarcoo, listed as number six (6) on the list of signatories who is described as "Member of Family". This I find strange. It would have been one thing if all the signatories were also listed as members of the family, however, the 1st four names have special designations such as Elder or Secretary. Apart from this Benjamin Addo Quarcoo there is no other similar name let alone Benjamin Addofio Quarcoo. Thus, it can be concluded that if the said Benjamin Addofio Quarcoo who was the head of the family was the one to have redistributed the property himself and was indeed present at the alleged meeting, he would have been designated as such. I find it difficult to believe that it was a mere typographical error. If anything at all, his name should have come first. I therefore find as a fact that the said Benjamin Addofio Quarcoo was not present at the said meeting if there was a meeting at all. To have cleared the doubt of there being a meeting, there is evidence on record to show that at least one person among the signatories is still alive and he could have been called by the defendant to prove especially that there was a redistribution and that the Plaintiff signed the said document. I do not think the defendant has been successful at discharging this burden. From the above, it can be concluded that the defendant has not been able to prove that he is the grandson of Peter Patrick Quarcoo and therefore is not entitled to a share in the property. The defendant has also not been able to prove that the Plaintiff participated in signing the document.

Issue 4.

In this issue, the burden lies on Plaintiff to prove that the defendant has been a nuisance to him. He attached exhibit D to show that the defendant has hauled him before the Commission on Human Rights and Administrative Justice (CHRAJ)

sometime in 2002. Apart from that, his only witness died and therefore could not be cross examined on this matter. Defendant has denied being a nuisance to him. Apart from that Plaintiff says that he needs the rooms for renovation and for his personal use. the question is if these reasons are sufficient for the Plaintiff to evict the defendant. I must clearly state that from the onset, Plaintiff has not declared himself to be the landlord of the defendant. he gave some rooms to the defendant because his Aunty pleaded with him to do so. There is also no evidence that the defendant has ever paid rent to the Plaintiff. As such the relationship between the parties can best be described as a licence. The common law recognized three categories of licenses being, bare or gratuitous licenses; license coupled with a grant or interest and contractual licences. The facts in this instance support that the type of license given was a bare or gratuitous license. There is no evidence to support consideration of any kind moving between the parties. In the case of ***Marian Obeng Mintah vrs. Francis Ampenyin (2015) JELR 68940 (SC)*** the position of a licensor and the effect of a license was extensively discussed.

"A bare or gratuitous licence is a mere permission for the licensee to enter upon the licensor's land. This permission may be withdrawn at any time by the licensor… The concept of a gratuitous tenant has received considerable treatment by Ghanaian writers in Land Law and Property. In his Ewe Law of Property, (1973) by Prof A.K.P. Kludze and edited by Anthony Allott, at page 245 the learned author highlighted on the concept thus: "A gratuitous tenancy may be determined if the tenant tries to set up an adverse title to the land. As its basis is usually blood relationship or friendship, it may also be determined for ingratitude, disobedience or bad behaviour towards the grantor or for committing waste. The right and grounds for determining a gratuitous tenancy extend to the successors of the grantor and grantee. **Hence a gratuitous tenancy granted several generations ago may be determined today if a bad relationship develops between those who have succeeded the original parties**.""

CONCLUSION

To sum it all up, I find that on a balance of probabilities, the Plaintiff has been able to prove his case. The defendant on the other has not been able to prove his relationship to Plaintiff's father Peter Patrick Quarcoo and his entitlement to the house in dispute.

FINAL ORDERS

1. Defendant, his assigns, officers, agents and heirs are ordered to vacate the house with house number B 112/18 Bubiashie Accra by 30th October 2025.
2. Costs of GH¢ 15,000.00 is awarded in favour of Plaintiff.

(SGD.)

H/W. ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.)

(DISTRICT MAGISTRATE)